

15	Vctm Landlord v. Garza	Before the Court is a motion filed by defendant Steven A. Garza (Defendant or Garza) to consolidate this action with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415. For the reasons set forth below, the motion is DENIED. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048, subd. (a).) The purpose is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures) and to avoid the substantial danger of inconsistent adjudications. (<i>Todd-Stenberg v. Daikon Shield Claimants Trust</i> (1996) 48 Cal.App.4th 976, 978-979.) The moving party must show the issues in each case are basically the same and that economy and convenience would be served by consolidation. (<i>Ibid.</i>) Here, the motion is procedurally defective because it is noticed as seeking consolidation with <i>Mahgerefteh v. Garza</i>, OCSC case no. 2024-01379415, but Defendant concedes that case was dismissed. In the reply, Defendant clarifies he is actually seeking consolidation between this action and <i>Magherefteh v. Garza</i>, OCSC case no. 2024-01402923. Not only is notice insufficient, Defendant failed to provide sufficient information from that action for the Court to adequately determine whether the claims are essentially the same, e.g., Defendant failed to submit a copy of Plaintiff's third amended complaint. Lastly, there is no proof a copy of the motion was filed in that action, as required by California Rules of Court, rule 3.350(a)(1). Case management conference CONTINUED to September 4, 2026 at 2:00 p.m. Defendant shall give notice of this ruling.
16	Palacios v. Board of Regents of the University of California	Before the court is the unopposed demurrer and unopposed motion to strike filed by defendants Regents of the University of California and Julie Ann Schneider, DRM, RA (collectively, Moving Defendants) directed to the complaint of plaintiff Andres Quezada Palacios (Plaintiff). The demurrer is SUSTAINED with 20 days leave to amend and the motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First, Second, and Third Causes of Action:</u> Moving Defendants contend Plaintiff lacks standing to assert the causes of action for medical malpractice, gross negligence, and elder abuse. (<i>Peterson v. Cellco Partnership</i> (2008) 164 Cal.App.4th 1583, 1589 ["Because standing goes to the existence of a cause of action, lack of standing may be raised by demurrer."].) Plaintiff pursues these causes of action in his individual capacity, but the complaint speaks only of medical care provided by defendants to Andres Herrera Palacios, not to Plaintiff. Further, as Moving Defendants argue, the complaint

alleges only a duty owed to the patient, Plaintiff's father Andres Herrera Palacios, not to Plaintiff. The demurrer on this ground is well-taken.

Moving Defendants also contend the gross negligence cause of action is duplicative of the medical malpractice claim and is thus subject to demurrer. (See *Holcomb v. Wells Fargo Bank, N.A.* (2007) 155 Cal.App.4th 490, 501.) Moving Defendants also contend Plaintiff fails to plead with the required specificity acts of recklessness, fraud, oppression, or malice sufficient to plead a claim for elder abuse. (See *Carter v. Prime Healthcare Paradise Valley, LLC* (2011) 198 Cal.App.4th 396, 405.)

The demurrer appears well-taken. Moreover, Plaintiff did not oppose the Demurrer and has therefore implicitly conceded the Demurrer's merit. (See, e.g., *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; see also, *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer to the first, second, and third causes of action is **SUSTAINED with 20 days leave to amend.**

Fourth Cause of Action: "Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply." (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Moving Defendants are correct that the complaint fails to allege facts showing Moving Defendants owed a duty to Plaintiff as the complaint alleges only medical care rendered to Plaintiff's father. To the extent the claim is based on allegations that Plaintiff was present during the care and treatment of his father and experienced emotional distress due to witnessing said treatment, these allegations appear insufficient to support a claim for negligent infliction of emotional distress as Plaintiff does not allege a specific injury-causing event. (See *Bird v. Saenz* (2002) 28 Cal.4th 910, 917.)

Plaintiff did not oppose the Demurrer and has therefore implicitly conceded the Demurrer's merit. (See, e.g., *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; see also, *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer to the fourth cause of action is **SUSTAINED with 20 days leave to amend.**

Fifth Cause of Action: Moving Defendants are correct that the complaint fails to allege the elements of the fraud claim with the requisite specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) Accordingly, the demurrer to the fifth cause of action is **SUSTAINED with 20 days leave to amend.**

Motion to Strike

		"In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13(a).) Section 425.13 applies to all claims "directly related to the manner in which professional services were provided." (<i>Central Pathology Service Medical Clinic, Inc. v. Superior Court</i> (1992) 3 Cal.4th 181, 192.) Here, Plaintiff filed no opposition and thus does not dispute that all of his claims are directly related to the manner in which Moving Defendants provided professional services. Because Plaintiff has not complied with section 425.13(a), the motion to strike is GRANTED without leave to amend. Case management conference is CONTINUED to September 4, 2026, at 2:00 p.m. Moving Defendants shall give notice.
17	Ciotti v. Public Storage Operating Co	On 4/20/26, this Court issued a modified Temporary Restraining Order ("TRO") at the request of Plaintiff Cari Ciotti ("Plaintiff"), and set a May 18, 2026 hearing date for an Order to Show Cause re Preliminary Injunction. Specially Appearing Defendant Public Storage Operating Company ("Defendant") filed an Opposition on 5/5/26. Plaintiff filed a reply brief on 5/11/26. The request for issuance of a Preliminary Injunction is DENIED, and the TRO is discharged. In determining whether to issue a preliminary injunction, the trial court considers two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (<i>Abrams v. St. John's Hospital & Health Center</i> (1994) 25 Cal.App.4th 628, 635–36.) The court's determination is guided by a mix of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other. (<i>Butt v. State of California</i> (1992) 4 Cal.4th 668, 678.) Here, Plaintiff has failed to show any reasonable probability of success on the merits. Defendant's Opposition and the supporting declaration from Jillian Gonzalez demonstrate that Defendant appears to have complied with all legal requirements for the sale. (See B&P Code §21706 [unless a declaration in opposition to the lien sale, executed under penalty of perjury, is received by the owner on or prior to the date specified in the notice of lien sale, by certified mail, the owner may, subject to statutory requirements, sell the property].) Plaintiff has failed to present evidence to refute the evidence presented by Defendant. The request for issuance of a Preliminary Injunction is therefore DENIED, and the TRO is discharged.

		Defendant's request for judicial notice (ROA 36) is granted under Ev. Code §452(d) as to the existence of the record, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The clerk is to give notice of this ruling.
18	Sycamore Canyon Plaza, LLC vs. Yu	No tentative
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